

Justification and Approval

American Council on Education (ACE) Evaluation, DEOMI.FY25-1577

Funding level for this J&A Document: Revolutionary FAR Overhaul (RFO) Part 12.102, Restricting Competition

Contracting Activity: Defense Human Resources Activity (DHRA), Acquisition Management Directorate (AMD)

Authority: Sole Source Justification Under RFO Part 12.102(a) in accordance with 41 U.S.C. §1901.

Estimated Contract Cost (including options): \$ [REDACTED]

COORDINATION & APPROVALS: (≤ SAT)

Technical/Requiring Activity Certification [REDACTED] [REDACTED] [REDACTED]	Signature
APPROVED BY: Contracting Officer [REDACTED] [REDACTED]	Signature

I. Agency/Contracting Activity.

Agency: Defense Equal Opportunity Management Institute (DEOMI), 366 Tuskegee Airmen Drive, Patrick Space Force Base, FL 32925

Contracting Activity: DHRA, 4800 Mark Center Dr, Alexandria, VA 22350

II. Description of supplies/services required to meet agency needs.

The Defense Equal Opportunity Management Institute (DEOMI) requires its triennial review of curriculum for college credit recommendation by the American Council on Education (ACE). The contractor shall provide a virtual evaluation methodology, personnel, management, materials, information technology infrastructure and credit recommendations that align with College Credit Recommendation Service (CREDIT®).

The following eight (8) courses/exams under this contract shall be evaluated for credit recommendation using virtual methodology:

1. Equal Opportunity Advisor (EOA) Course (EOAC); 2. EOA Reserve Component Course (EOARCC); 3. Equal Employment Opportunity (EEO) Professional Series-Entry Course (EPS-EC); 4. EEO Professional Series-Intermediate Course (EPS-IC); 5. EEO Professional Series-Advanced Course (EPS-AC); 6. EEO Disability Program Management Course (DPMC); 7. EEO Mediation Course (MC); and 8. Faculty Training and Development Course (FTDC)

DEOMI is requesting sole source approval for this requirement.

Name of Intended Contractor: The American Council on Education (ACE)

Street Address: 1 Dupont Circle, NW

City, State, Zip Code: Washington, D.C. 20036-1110

III. Statutory authority permitting Other than Full and Open Competition.

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Simplified Procedures for Certain Commercial Items, 41 U.S.C. §1901 as implemented by RFO Subpart 12.102(a):

- ☐ Unusual and compelling urgency
- ☐ Exclusive licensing agreements
- ☐ Industrial mobilization
- ☒ Other: Only one responsible source and no other supplies or services will satisfy agency Requirements

IV. Justification for Soliciting from a Single Source or Brand Name

Department of Defense Instruction (DoDI) 1322.25 Voluntary Education Programs (2020) states in its policy (para 3a) that, "Members of the Armed Forces serving on active duty and members of the Selected Reserve (SELRES) will be afforded the opportunity to...receive college credit for military training and experience in accordance with the American Council on Education' (ACE) Guide to the Evaluation of Educational Experiences in the Armed Services..." The Inter-Service Training Guidance (AR 351-9/OPNAVINST 1500.27H/*/DAFI 36-2657MCO 1580.7F dtd *29 August 2012, para 11h) states that: (1) The lead Service will provide participating Services with information on college-level credit recommendation for completed training. (2) When seeking course review by the American Council on Education, the lead Service will provide course numbers for each participating Service to ensure that American Council on Education recommendations apply to each Service.

Department of War standards of academic quality and cost-effectiveness shall be consistent with applicable law, including 5 U.S.C. Chapter 41 (Reference (d)), and executive orders and regulations, including the FAR and the DFARS. DEOMI occupational training (equal opportunity and equal employment opportunity training) has been evaluated by ACE CREDIT Service for over 40 years.

V. Efforts to Obtain Competition

ACE is the primary agency evaluating military training for college credit recommendation. ACE's Military Guide presents credit recommendations for formal courses and occupations offered by all branches of the military.

DEOMI continues to search available markets for educational development products that present the greatest value for the United States Government. No other evaluation meets the Inter-Service Training guidance stated above.

In accordance with RFO 5.101(a)(2) this action will be posted in the Governmentwide point of entry (GPE) as a Special Notice of Intent along with a copy of this Justification and Approval (J&A).

VI. Steps to Preclude Future Single Source or Brand Name Awards

DEOMI will continue to search available markets for educational development products that present the greatest value for the United States Government.

VII. Certification by the technical/requirements personnel

As evidenced by my signature above, I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

VIII. Certification by the Contracting Officer

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.